STANDARD SOFTWARE DEVELOPMENT TERMS AND CONDITIONS

These Standard Software Development Terms and Conditions ("Software Terms and Conditions") are entered into between DigitalMAG Ltd, a company incorporated in Republic of Seychelles with a registration number 248541, having its registered address at Suite 3, First Floor, La Ciotat Buidling, Mont Fleuri, Mahe, Seychelles ("Contractor") and the Customer referenced on the corresponding insertion order ("Insertion Order" or “IO”). These Software Terms and Conditions shall be deemed incorporated by reference into any corresponding Insertion Order submitted by the Customer. The Software Terms and Conditions and the Insertion Order shall be collectively known as the "Agreement."

1. DEFINITIONS

For the purposes of the Agreement, the following terms and definitions shall be interpreted as follows:

1.1. "Agreement" means the applicable Insertion Order together with these the Software Terms and Conditions, as amended from time to time.

1.2. "Business Day" means a day other than a Saturday, Sunday or public holiday in Seychelles.

1.3. "Fee" means the total amount payable by the Customer to the Contractor for the Services, as specified in the applicable Insertion Order.

1.4. "Insertion Order" or "IO" means the document executed by the Parties describing the Software, timeline and Fee applicable to a particular project.

1.5. "Intellectual Property Rights" means all copyrights, patents, trademarks, service marks, trade names, database rights, trade secrets, know-how and all other intellectual property rights, whether registered or unregistered, anywhere in the world.

1.6. "Material Defect" means any material deviation from the applicable Insertion Order that:

(a) causes errors in the operation of the Software;

(b) disrupts or materially impairs the intended functionality of the Software;

(c) prevents or materially restricts the use of the Software for its intended purpose as described in the Technical Specification; or

(d) results from errors in software architecture, design, coding or implementation attributable to the Contractor.

1.7. "Services" means the software development services provided by the Contractor under the Agreement, including the development and delivery of the Software.

1.8. "Software" means Telegram bot developed by the Contractor under the Agreement.

1.9. "Telegram Bot" means a software application operating through the Telegram Messenger platform.

1.10. "Testing Period" means the period of five (5) Business Days following delivery of the Software to the Customer, during which the Customer may test the Software and notify the Contractor of any Material Defects.

1.11. In the event that the Agreement uses terms that are not expressly set forth in this section and/or further in the text of the Agreement or in the text of its appendices and additions, then the interpretation of such terms shall be in accordance with the business practice and the applicable laws.

2. SCOPE OF THE SERVICES

2.1. The Contractor shall develop and deliver the Software for the Customer in the form of Telegram bot in accordance with the characteristics set out in the applicable Insertion

Order. In consideration thereof, the Customer shall accept the Software and pay the Fee specified in the applicable Insertion Order.

2.2. The scope of the Services, specifications of the Software, development timeline, Fee and any other project-specific terms shall be set out in the applicable Insertion Order. Each Insertion Order shall form an integral part of the Agreement and shall become binding upon signing by both Parties.

3. FEES AND PAYMENTS

3.1. The Customer shall pay one hundred percent (100%) of the Fee in advance on the basis of an invoice issued by the Contractor. The Contractor shall have no obligation to commence performance of the Services until the Customer's payment obligation has been fulfilled in accordance with clause 3.4.

3.2. All amounts payable to the Contractor under the Agreement are exclusive of any taxes and shall be paid free and clear of any deductions or withholdings. If any withholding tax is required by applicable law in respect of any payment under the Agreement, the Customer shall pay such additional amounts as may be necessary to ensure that the net amount received by the Contractor is equal to the amount that the Contractor would have received had no such deduction or withholding been made.

3.3. The Fee includes all costs and expenses incurred by the Contractor in connection with the performance of the Services.

3.4. The Customer's payment obligation shall be deemed fulfilled only when the relevant funds have been credited to the Contractor's bank account.

4. SOFTWARE DELIVERY, TESTING AND ACCEPTANCE

4.1. The method of delivery of the Software shall be specified in the relevant Insertion Order. Upon delivery of the Software, the Contractor shall provide the Customer with all credentials, access details, passwords and other information reasonably required to access and use the Software.

4.2. Upon completion by the Contractor of the scope of Services, the Contractor shall submit the Software to the Customer for testing and acceptance. Following successful completion of the Testing Period, the Parties shall execute an Certificate of Acceptance in the form set out in Appendix No. 1 to this Software Terms and Conditions.

4.3. The Contractor shall be entitled to complete and deliver the whole or any part of the Services prior to the completion date. Where the Parties have agreed on intermediate stages of the Services, the Contractor may submit such stages for acceptance separately. The Customer shall accept any properly completed stages of the Services in accordance with the terms of the Agreement.

4.4. During the Testing Period, the Customer shall be entitled to test the Software using any reasonable testing methods and tools.

4.5. If the Customer identifies any Material defects in the Software during the Testing Period, the Customer shall submit a written notice to the Contractor describing such defects in reasonable detail no later than the expiry of the Testing Period.

4.6. If the Customer does not identify any Material defects in the Software during the Testing Period, the Customer shall sign and return the Certificate of Acceptance to the Contractor within five (5) Business Days following receipt thereof.

4.7. If the Customer fails to provide either:

(a) a duly executed Certificate of Acceptance; or

(b) a reasoned written notice specifying the identified Material defects,

within the period specified above, the Software and Services shall be deemed accepted by the Customer in full, and the Certificate of Acceptance signed by the Contractor alone shall constitute sufficient evidence of acceptance.

4.8. Upon receipt of a valid notice under Clause 4.6, unless otherwise agreed by the Parties the Contractor shall remedy the identified Material defects at its own expense within five (5) Business Days following receipt of the Customer's notice.

4.9. The Contractor shall not be obliged to remedy any issue where:

(a) the issue relates to functionality, features or requirements not expressly included in the applicable Insertion Order;

(b) the issue does not materially affect the operation, functionality or performance of the Software;

(c) the Customer fails to provide sufficient information to enable the Contractor to reproduce and investigate the reported issue.

4.10. If, during the performance of the Services, the Contractor determines that implementation of any functionality specified in the Insertion Order is technically impossible due to limitations beyond the Contractor's reasonable control, despite the Contractor's use of commercially reasonable efforts, the Contractor shall promptly notify the Customer in writing.

Such notice shall describe:

(a) the affected functionality;

(b) the technical reasons preventing implementation; and

(c) any related functionality that may also be impacted.

Following receipt of such notice, the Parties shall discuss and agree either:

(i) amendments to the Insertion Order;

(ii) replacement functionality; or

(iii) a corresponding reduction in the Fee.

4.11. The Customer may submit a written request for modifications to the Software or for additional development services ("Change Request"). Any Change Request shall be subject to the Contractor's review and shall be implemented only upon execution by the Parties of a written amendment to the relevant Insertion Order.

5. RIGHTS AND OBLIGATIONS OF THE PARTIES

5.1. The Contractor shall:

5.1.1. If, during the clarification of the Software characteristics, the Customer provides additional instructions which, in the Contractor's reasonable opinion, may adversely affect the quality, functionality, feasibility of the Software or timing of the Services, the Contractor shall promptly notify the Customer in writing, providing a reasoned explanation of the potential impact of such instructions and, where applicable, proposing alternative solutions. Any changes to the scope, functionality or requirements of the Software resulting from such instructions shall be agreed by the Parties as soon as reasonably practicable.

5.2. The Customer shall:

5.2.1. At the Contractor's request, provide all information, materials and assistance reasonably required for the performance of the Services within three (3) Business Days of such request. If the Customer fails to comply with this obligation, the Contractor shall be entitled to suspend performance of the Services until the required information, materials or assistance are provided. In such case, the Contractor shall not be liable for any resulting delay, and all applicable deadlines shall be extended by a period equal to the duration of the Customer's delay.

5.3. The Contractor shall have the right to:

5.3.1. Engage third parties (including subcontractors) to perform all or part of the Services without obtaining the Customer's prior consent, provided that the Contractor shall remain fully responsible for the performance of the Services and for the acts and omissions of such third parties.

5.3.2. Use the Customer's name, trademarks, trade names and logos solely for the purpose of identifying the Customer as a client of the Contractor, including on the Contractor's website and in the Contractor's or its affiliates' marketing and promotional materials (including brochures, presentations, press releases and similar materials). Such use shall not constitute a disclosure of Confidential Information.

6. LIABILITY OF THE PARTIES

6.1. In the event of any delay by the Customer in payment for the Services, the Contractor shall be entitled to charge the Customer a penalty in the amount of 0.1% (one tenth of one percent) of the overdue amount for each day of delay. This clause shall not apply where the applicable Insertion Order provides for one hundred percent (100%) prepayment of the Services.

6.2. The Contractor makes no representations or warranties regarding the achievement of any specific results from the Services and shall not be liable for any failure of the Services to meet the Customer's expectations, objectives or requirements.

7. FORCE MAJEURE

7.1. Neither Party shall be liable for any failure or delay in performing its obligations under the Agreement to the extent that such failure or delay results from a force majeure event, including, without limitation, natural disasters (such as floods, fires, earthquakes or other natural catastrophes), war, military actions, terrorism, civil unrest, epidemics or pandemics, or acts or omissions of governmental or regulatory authorities, provided that such circumstances arise after the execution of the Agreement, are beyond the reasonable control of the affected Party, and could not reasonably have been foreseen or avoided.

7.2. If a force majeure event directly affects the performance of a Party's obligations under the Agreement, the time for performance of such obligations shall be extended for a period equal to the duration of the force majeure event and its direct consequences.

7.3. The Party affected by a force majeure event shall notify the other Party in writing as soon as reasonably practicable, but in any event no later than thirty (30) calendar days after becoming aware of such force majeure event, specifying the nature of the event, its expected duration, and, where reasonably available, supporting evidence.

7.4. Failure to provide the notice referred to in clause 7.3 within the prescribed period shall deprive the affected Party of the right to rely on the relevant force majeure event as grounds for exemption from liability to the extent that such failure has prejudiced the other Party. The existence of a force majeure event may be evidenced by certificates or other official documents issued by the competent governmental or other authorized authorities, where such documents are available.

7.5. If a force majeure event continues for more than two (2) consecutive months, either Party may terminate this Agreement, in whole or in part, by written notice to the other Party. Upon such termination, the Parties shall promptly settle all amounts due for Services performed prior to the occurrence of the force majeure event, and any unused prepayments shall be refunded in accordance with the Agreement. Neither Party shall be liable to the other for any indirect or consequential losses arising solely as a result of such termination due to the force majeure event.

8. APPLICABLE LAW AND DISPUTE RESOLUTION

8.1. This Agreement shall be governed by and construed in accordance with the laws of Republic of Seychelles.

8.2. The Parties shall use their best efforts to resolve any dispute, controversy, claim or complaint arising out of or in connection with the Agreement through good-faith

negotiations. Compliance with the pre-action dispute resolution procedure set out in this clause shall be a mandatory condition precedent to commencing legal proceedings.

8.3. If a dispute, controversy, claim or complaint is not resolved within thirty (30) calendar days from the date of receipt by the responding Party of a written notice from the other Party setting out the nature of the dispute, either Party may refer the matter to the competent courts of Republic of Seychelles.

9. CONFIDENTIALITY

9.1. "Confidential Information" means any non-public information disclosed by one Party (the "Disclosing Party") to the other Party (the "Receiving Party"), whether in oral, written, electronic or any other form, including but not limited to:

(a) business, commercial, financial and technical information;

(b) databases, specifications, documentation, designs, drawings and know-how;

(c) information relating to the Disclosing Party's customers, suppliers, business partners and prospective customers;

(d) trade secrets and proprietary information; and

(e) the terms of the Agreement and any information exchanged in connection with its performance.

9.2. Neither Party shall disclose to any third party or otherwise make available any Confidential Information of the other Party obtained in connection with the negotiation, conclusion or performance of the Agreement, except with the prior written consent of the disclosing Party or as required by applicable law.

9.3. Confidential Information shall not include information that the Receiving Party can demonstrate:

(a) is or becomes publicly available through no breach of the Agreement by the Receiving Party;

(b) was lawfully known to the Receiving Party prior to disclosure by the Disclosing Party;

(c) is lawfully obtained from a third party without restriction on disclosure; or

(d) is independently developed by the Receiving Party without use of or reference to the Confidential Information.

9.4. Each Party shall:

(a) use the Confidential Information solely for the purposes of performing its obligations and exercising its rights under the Agreement;

(b) protect the Confidential Information with at least the same degree of care as it uses to protect its own confidential information of a similar nature, but in no event less than a reasonable degree of care;

(c) restrict access to the Confidential Information to its directors, officers, employees, contractors, professional advisers and affiliates who have a need to know such information for the purposes of the Agreement and who are bound by confidentiality obligations no less restrictive than those contained herein; and

(d) remain responsible for any breach of this clause by such persons.

9.5. Any Party may disclose Confidential Information to the extent required by applicable law, regulation, court order or request of a competent governmental authority, provided that, where legally permissible, the Receiving Party promptly notifies the Disclosing Party of such requirement and cooperates with the Disclosing Party in seeking confidential treatment or other appropriate protective measures.

9.6. Upon termination or expiration of the Agreement, and upon the written request of the Disclosing Party, the Receiving Party shall promptly return or permanently destroy all

Confidential Information in its possession or control, except to the extent that retention is required by applicable law or for legitimate internal record-keeping purposes.

9.7. The obligations set forth in this Section shall survive the termination or expiration of the Agreement for a period of two (2) years.

10. TERM AND TERMINATION

10.1. The Agreement shall become effective upon execution of an Insertion Order that incorporates these Software Terms and Conditions by reference and shall remain in effect until all obligations of the Parties under any Insertion Orders have been fully performed, unless terminated earlier in accordance with the Agreement.

10.2. The Agreement and any documents executed in connection with it may be signed electronically, including through DocuSign or any other mutually agreed electronic signature service. Such electronic signatures shall have the same legal force and effect as handwritten signatures.

10.3. The Agreement may be terminated at any time by mutual written agreement of the Parties.

10.4. Upon termination or expiration of the Agreement for any reason the Customer shall pay all amounts due and payable to the Contractor in respect of Services performed and expenses incurred prior to termination.

11. INTELLECTUAL PROPERTY

11.1. Subject to clause 11.2, the Contractor hereby agrees to transfer to the Customer the exclusive intellectual property rights to the Software, including the right to use the Software in any manner not prohibited by applicable law, including, without limitation, the right to:

- reproduce the Software, in whole or in part, by any means and in any form;
- distribute, sell, lease, sublicense or otherwise make the Software available to third parties;
- modify, adapt, update, translate, improve, develop and create derivative works based on the Software;
- publicly display, communicate, transmit or otherwise exploit the Software; and
- use the Software for any commercial or non-commercial purposes.

11.2. The exclusive intellectual property rights to the Software shall transfer to the Customer only upon the occurrence of both of the following events:

(a) acceptance of the Software by the Customer in accordance with the procedure set out in this Agreement; and

(b) full payment by the Customer of all amounts due and payable under the Agreement.

Until the transfer of the exclusive intellectual property rights in accordance with this clause 11.2, all such rights shall remain vested in the Contractor.

11.3. Notwithstanding the transfer of rights set out in this section 11, all intellectual property rights in and to the Contractor's pre-existing materials, know-how, methodologies, development tools, software libraries, frameworks, templates, generic code, utilities, concepts, techniques and other materials developed or acquired independently of this Agreement ("Background IP") shall remain the sole and exclusive property of the Contractor.

11.4. To the extent that any Background IP is incorporated into or required for the use, operation or maintenance of the Software, the Contractor hereby grants to the Customer a perpetual, worldwide, non-exclusive, royalty-free, irrevocable license to use such Background IP solely as part of and in connection with the Software.

11.5. The Contractor represents and warrants that, to the best of its knowledge, the Software created under the Agreement and the transfer of rights contemplated herein do not infringe any third-party intellectual property rights.

12. MISCELLANEOUS

12.1. No Agency. Nothing in the Agreement shall be deemed in any way or for any purpose to constitute any Party an agent of an unaffiliated party in the conduct of such other Party's business. The Contractor under the Agreement shall act as an independent service provider and not as the agent of the Customer in performing the services, maintaining control over its employees, its subsidiaries, subcontractors, etc.

12.2. Independent Contractor. The Contractor may hire or engage one or more subcontractors to perform any or all of its obligations under the Agreement.

12.3. Further Assurances. Each Party covenants and agrees that, without any additional consideration, it shall execute and deliver any further legal instruments and perform any acts that are or may become necessary to effectuate the Agreement.

12.4. Notices.

12.4.1. A notice given under the Agreement:

12.4.1.1. shall be in writing in the English language (or be accompanied by a properly prepared translation into English); and

12.4.1.2. shall be:

12.4.1.2.1. delivered personally; or

12.4.1.2.2. sent by pre-paid first-class post, recorded delivery or registered post; or

12.4.1.2.3. sent by electronic mail specified in the Insertion Order.

12.4.1.3. A notice is deemed to have been received:

12.4.1.3.1. if delivered personally, at the time of delivery; or

12.4.1.3.2. in the case of pre-paid first-class post, recorded delivery or registered post, two days from the date of posting; or

12.4.1.3.3. if sent by electronic mail, at the day when the notice is sent.

12.4.1.4. To prove the delivery, it is sufficient to prove that the envelope (or e-mail, as the case may be) containing the notice was properly addressed and posted.

12.5. Severability. If any provision of the Agreement is invalid, illegal or incapable of being enforced under any law or as a matter of public policy, all other conditions and provisions of the Agreement shall nevertheless remain in full force and effect so long as the economic or legal substance of the transactions contemplated by the Agreement is not affected in any manner materially adverse to any party. Upon such determination that any term or other provision is invalid, illegal or incapable of being enforced, the parties shall negotiate in good faith to modify the Agreement so as to effect the original intent of the Parties as closely as possible in a mutually acceptable manner in order that the transactions contemplated by the Agreement be consummated as originally contemplated to the greatest extent possible.

12.6. Entire Agreement. The Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof, supersede all prior written and oral and all contemporaneous oral agreements, negotiations, discussions, writings, understandings, commitments and conversations with respect to such subject matter and there are no agreements or understandings between the parties other than those set forth or referred to herein or therein.

12.7. Amendment. No provision of the Agreement may be amended, supplemented or modified except by a written document signed by both Parties.

12.8. Counterparts. Each Insertion Order may be executed in one or more counterparts, and by each Party in separate counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument. Delivery of an executed counterpart by PDF or electronic signature service shall be as effective as delivery of an original manually executed counterpart.

Each Insertion Order may be executed in counterparts, including by means of electronic signature (including via DocuSign), each of which shall be deemed an original and all of which together shall constitute one and the same instrument.

12.9. Assignability. The Customer is not entitled to transfer or assign their rights and obligations under the Agreement to third parties without obtaining the prior written consent of the Contractor. The Contractor has the right, at its discretion, without the consent of the Customer, to assign or otherwise transfer its rights and obligations under the Agreement to third parties, by giving a written notice to the Customer.

13. INTERPRETATION

Unless the context otherwise requires:

(a) references to clauses, schedules and appendices are references to the clauses of, and the schedules and appendices to, these Software Terms and Conditions;
(b) all schedules, appendices and other attachments referred to in these Software Terms and Conditions are incorporated herein by reference and shall form an integral part of these Software Terms and Conditions;
(c) headings are for convenience only and shall not affect the interpretation of these Software Terms and Conditions;
(d) words importing the singular include the plural and vice versa;
(e) references to a person include any individual, company, corporation, partnership, governmental authority or other legal entity;
(f) references to any law, statute or regulation include any amendment, modification, re-enactment or replacement thereof;
(g) the words “including”, “include”, “in particular” and similar expressions shall be construed as being without limitation;
(h) references to writing or written communications include email communications.

Appendix No.1
to the Software Terms and Conditions

TEMPLATE

CERTIFICATE OF ACCEPTANCE

THIS CERTIFICATE OF ACCEPTANCE ("Certificate") is made __ _____ 202_ (the "Effective Date") under Insertion Order No._____ dated __/__/202_ by and between: _____, a company incorporated in the _____ with a registration number _____, having its registered address at _____ (the "Customer") and DigitalMAG Ltd, a company incorporated in Republic of Seychelles with a registration number 248541, having its registered address at Suite 3, First Floor, La Ciotat Buidling, Mont Fleuri, Mahe, Seychelles (the "Contractor"), together referred to as the "parties", and individually as the "party".

1. The Contractor has fully completed the Services under the Insertion Order and developed the following Software:

No.	Software	Fee, USD
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	TOTAL:	

2. The Contractor has delivered, and the Customer has accepted, the Software specified in this Certificate.
3. The Customer hereby accepts the Services and the Software specified in this Certificate without objections or reservations.

SIGNATORIES OF THE PARTIES

The Customer:
_____
Position of the signatory

/Full Name/_____

The Contractor:
DigitalMAG Ltd
Position of the signatory

/Full Name/_____